

TERMS AND CONDITIONS OF USE

Mobile Application : Mystia
Last Updated: January 23, 2026

1. Purpose

The purpose of these Terms and Conditions of Use ("Terms") is to define the terms and conditions under which **Mr. Morgan NOUËT**, acting under the trade name **Garias Interactive** (hereinafter "the Publisher" or "we") within the framework of a Business Project Support Contract (CAPE) concluded with the **Odacio** business incubator, provides the AI-assisted cartomancy mobile application **Mystia** ("the Application") and its associated services ("the Service"), as well as the rights and obligations of users ("the User" or "you").

Legal, social, and tax support for the activity is provided by: **ODACIO - COUVEUSE D'ENTREPRENEURS DE CHARENTE-MARITIME**, a Simplified Joint-Stock Company (SAS), with its registered office located at **2 RUE BRAILLE, 17000 LA ROCHELLE**, registered with the RCS of La Rochelle under SIREN number **433 497 310**. Intra-community VAT number: **FR41433497310**.

2. Acceptance of the Terms

By installing, accessing, or using the Application, you acknowledge that you have read, understood, and accepted these Terms without reservation. If you do not accept all or part of the Terms, you must immediately cease using the Application.

3. Access and Eligibility

The Application is available on the Google Play Store and Apple App Store.

You must be at least 16 years old (or the higher legal age required in your country) and possess the legal capacity to enter into a contract.

The Publisher reserves the right to suspend or delete, without notice, any account or access in the event of a violation of the Terms.

4. Description of the Service

The Application allows for:

- Virtual drawing of tarot or oracle cards.
- Consultation of traditional textual interpretations of the cards (free feature).

- To receive, via an artificial intelligence module, a personalized summary ("AI Summary") based on the combination of cards (premium feature).

WARNING: AI Summaries are generated automatically and are intended solely for playful and entertainment purposes. They do not constitute professional, financial, legal, medical, psychological, or any other type of advice, nor an inducement to take or not take any action. You remain solely responsible for your actions, choices, and interpretations.

5. Economic Model

5.1 Freemium Version

The Application offers a free version providing no-cost access to virtual drawings and traditional textual interpretations. The Publisher may also, at its sole discretion, offer welcome benefits or discovery credits to test Premium features (such as the AI Summary). The number of credits potentially offered, their allocation conditions, and their validity period are specified directly within the Application. The Publisher reserves the right to modify or remove these discovery offers at any time, without notice, particularly as part of promotional testing or changes to the Application's economic model.

5.2 Premium Subscriptions

To unlock AI Summaries, the User may subscribe to various subscription plans (Weekly, Monthly, or Annual). The applicable rates, as well as the corresponding currencies, are those displayed clearly and explicitly within the Application at the time of subscription. Rates may vary based on:

- The User's country of residence (local taxes and exchange rates).
- Current promotional offers or pricing tests conducted by the Publisher. Once the subscription is validated via third-party payment services (Apple or Google), the price displayed at the time of purchase is guaranteed for the entire duration of the chosen subscription period.

6. Payment – Renewal – Cancellation

Payments are processed by Google Play or Apple App Store, depending on your platform. We do not store any banking data.

- The subscription is automatically renewed at the end of each period, unless canceled by you at least 24 hours before the end of the current period via your Store settings.
- You can manage or cancel your subscription at any time in your Google or Apple account settings.
- No partial refund is provided for the current subscription period, unless otherwise stated by the Google Play or Apple App Store policies or mandatory legal provisions.

7. Right of Withdrawal

In accordance with EU Directive 2011/83/EU and the French Consumer Code, as well as international standards for the sale of digital content, you expressly consent to the performance of the Service beginning immediately upon purchase. Consequently, you waive any right of withdrawal or cooling-off period once the digital content is provided.

8. User Obligations and Conduct

You agree to:

- Use the Application in accordance with current laws and regulations and these Terms;
- Not attempt to access the source code or decompile it;
- Not misuse the Service for illicit purposes (fraud, harassment, defamation, etc.);
- Respect the intellectual property rights of the Publisher and third parties.

9. Intellectual Property

9.1 Publisher's Assets The Application and its content (including the Mystia brand, the Garias Interactive trade name, source codes, texts, graphics, logos, drawing algorithms, databases, etc.) are protected by copyright and intellectual property laws. These elements are the exclusive property of **Mr. Morgan NOUËT**. Any unauthorized reproduction, representation, or adaptation of these elements is strictly prohibited.

9.2 Visuals and Artificial Intelligence The visuals and illustrations present in the Application were generated by the Publisher via the OpenAI platform, under a full commercial license in accordance with the terms of use of said platform. The User does not hold any ownership rights over these elements but benefits from a private, limited, and non-commercial right of use within the strict framework of using the Service.

9.3 User-Generated Content The User grants the Publisher a non-exclusive, free, and worldwide license to use the content generated within the Application (questions asked, choices of readings, etc.) for exclusively technical, statistical, or service improvement purposes, in compliance with the Privacy Policy.

10. No Professional Advice

Limitation of Liability Clause:

1. **No Advice:** The information provided, including AI Summaries, is strictly intended for entertainment purposes. It shall at no time replace the advice of a qualified professional (doctor, financial advisor, lawyer, etc.).
2. **User Decisions:** You acknowledge that you are fully responsible for your decisions and actions. The Publisher declines all responsibility for any loss or damage (direct, indirect, consequential, bodily, material, or immaterial) resulting from:
 1. Reliance placed on a reading, explanatory text, AI Summary, or any information derived from the Service;
 2. Personal interpretation of the cards or AI Summaries;
 3. Any action or lack of action based on this information.
3. **Limitation of Warranty:** The Service is provided "as is" and "as available" without any warranty of accuracy, reliability, or fitness for a particular purpose.

11. Limitation of Liability

To the extent permitted by law:

- Our cumulative liability, for all damages combined, is limited to the amount actually paid by the User for the subscription during the past 12 months;
- We shall not be liable for indirect or unforeseeable damages, including loss of profit or loss of opportunity. Nothing in these Terms excludes or limits liability that the law prohibits from excluding or limiting.

12. Suspension – Termination

We may suspend or terminate your access to the Service, immediately and without notice, in the event of:

- Violation of the Terms;
- Non-payment of a subscription;
- Request from competent authorities or legal obligation.

13. Modifications to the Service and the Terms

We reserve the right to:

- Modify or discontinue all or part of the Service at any time;
- Update the Terms to reflect legal, technical, or functional developments of the Service.

The revised Terms apply as soon as they are published in the Application. If you continue to use the Service after the update, you are deemed to have accepted them.

In the event of disagreement with the new Terms, the User may terminate their account at any time, free of charge, from within the Application or by contacting support.

14. Personal Data

The processing of personal data is governed by our separate Privacy Policy, accessible within the Application. In accordance with the GDPR, you have the right to access, rectify, erase, object to, and port your data, which you can exercise at: **my.mystia.contact@gmail.com**

15. Third-Party Services

The Application may integrate or link to third-party services (App Store, Play Store, payment platforms, social networks). We assume no responsibility for the content, practices, or policies of these third parties. Users are encouraged to consult their respective terms and conditions.

16. Severability

If any clause of these Terms is declared null or unenforceable, the other provisions shall remain in force. The disputed clause will be replaced by a valid provision that most closely reflects the original intent.

17. Governing Law and Jurisdiction

17.1 Governing Law

These Terms are governed by French law.

17.2 Mandatory Consumer Law

Regardless of clause 17.1, the User also benefits from the mandatory provisions and consumer protection rights provided by the legislation of their country of habitual residence, whenever these are more favorable.

17.3 Dispute Resolution outside the European Union

17.3.1 - Mandatory Amicable Phase: Before any legal action, the User agrees to attempt to resolve the dispute amicably by contacting the Publisher at **my.mystia.contact@gmail.com**.

17.3.2 - Users within the European Union: In the event of a failed complaint to support, the User may use the Online Dispute Resolution (ODR) platform provided by the European Commission.

17.3.3 - Users outside the European Union (notably USA/Canada): Any dispute relating to these Terms will be resolved by final and binding arbitration, unless prohibited by the User's local law. The User expressly waives any right to a class action. The arbitration will take place exclusively by electronic means.

18. Contact for any Questions or Claims

Email: **my.mystia.contact@gmail.com**